

7.

CASE #	CASE NAME	HEARING NAME
CVRI2505794	COFFELT VS STINTSON	DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

Tentative Ruling:

SUSTAIN with 30 days leave to amend as to the first, second, third and sixth causes of action. SUSTAIN without leave to amend as to the seventh, eighth and ninth causes of action. OVRERRULE as to the fourth and fifth causes of action. Plaintiff shall not add new causes of action without seeking permission from the court.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2600240	PIGG VS NORTH AMERICAN SAVINGS BANK, F.S.B.	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

SUSTAIN the demurrer without leave to amend.

Grant Defendant North American Savings Bank, F.S.B.'s Request for Judicial Notice.

Plaintiff is the trustee of a private trust and cannot represent the trust *in pro per*. (See *Zigler v. Nickel* (1998) 64 Cal.App.4th 545.) Plaintiff lacks standing to challenge the foreclosure because it holds no title to the property and is not a party to the Note or Deed of Trust at issue. (See Request for Judicial Notice, Exh's. A,B,K,L.) Further, Plaintiff fails to allege sufficient facts to state a quiet title or cancellation of instrument cause of action. The court takes judicial notice that the Plaintiff is not the owner of the property. The cancellation of instrument cause of action fails because Plaintiff fails to allege facts showing that the Trustee's Deed Upon Sale is void or voidable as to Plaintiff.